



**Bureau of Experts at the Council of Ministers
Official Translation Department**

Statute of the Fund for Martyrs, Wounded Persons, POWs, and MIAs

Council of Ministers Resolution No. 366
June 1, 2015

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Statute are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

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Statute of the Fund for Martyrs, Wounded Persons, POWs, and MIAs

Article 1: Definitions

Minister: Minister of Interior.

Fund: Fund for Martyrs, Wounded Persons, POWs, and MIAs.

Board: Board of Trustees of the Fund.

Martyr: Any military personnel member or civilian who dies as a result of war, during a military exercise and peacekeeping operations, or during search and rescue operations to save lives or property in hostage situations or fires. This includes cadets assigned to perform similar tasks as well as Saudi military or civilian employees or contracted workers and any of their family members, within the Kingdom or abroad, who die as a result of a terrorist act or an act targeting the Kingdom. Any of the abovementioned persons who suffers a disability exceeding 70% shall be deemed a martyr.

Missing in Action (MIA): Any military personnel member who becomes missing as a result of war or during a military exercise and peacekeeping operations, and whose fate is unknown. This includes civilians and cadets assigned to perform similar tasks.

Prisoner of War (POW): Any military personnel member who is captured during war or during a military exercise and peacekeeping operations, and who is proven to be alive. This includes civilians and cadets assigned to perform similar tasks.

Wounded Person: Any military personnel member or civilian who sustains injury that causes a disability of 70%, or less, whether such injury occurs due to war, during a military exercise and peacekeeping operations, or during search and rescue operations to save lives or property in hostage situations or fires. This includes cadets assigned to perform similar tasks as well as Saudi military or civilian employees or contracted workers and any of their family members, within the Kingdom or abroad, who suffer such disability as a result of a terrorist act or an act targeting the Kingdom.

Families of Martyrs, MIAs, and POWs: Parents, spouses, sons, daughters, and legal dependents.

Statute: Statute of the Fund.

Article 2

Pursuant to this Statute, a fund for martyrs, wounded persons, POWs, and MIAs shall be established. It shall have legal personality and financial and administrative independence, and shall report to the Minister.

Article 3

The Fund shall be headquartered in the city of Riyadh, and may, pursuant to a decision by the Board of Trustees, establish branches or offices in the Kingdom.

Article 4

The Fund aims to assist persons in need from the family members and legal dependents of martyrs, wounded persons, POWs, and MIAs, and to carry out charity work in their names, in accordance with the provisions of this Statute.



Article 5

The Fund shall have a board of trustees chaired by the Minister and comprising, as members, the Minister of Islamic Affairs, Endowments, Dawah, and Guidance, Minister of Finance, and Minister of Social Affairs. The Chairman shall appoint, pursuant to a decision issued thereby, at least four additional members known for their contribution to charity work.

Article 6

The Board shall be the Fund's highest authority and shall set its general policy and oversee its implementation. In particular, the Board shall assume the following powers:

1. Disburse from the Fund in accordance with the provisions of this Statute.
2. Determine the Fund's investment channels and the percentage of funds to be allocated to each of such channels.
3. Purchase real estate and duly register such real estate with the competent authorities as endowments under the Fund's name, develop the same and collect the revenues thereof, and disburse such revenues as provided for in this Statute.
4. Determine the expenditure channels of the Fund's revenues and set the necessary controls therefor.
5. Issue the Fund's financial and administrative regulations.
6. Accept gifts, donations, bequests, and endowments.
7. Adopt a plan for the development of the Fund's resources and the investment of its funds.
8. Establish branches or offices for the Fund in the Kingdom.
9. Appoint the Fund's secretary general and determine his powers and rights.
10. Appoint an auditor for the Fund and determine his fees.
11. Approve the Fund's final accounts and auditor's report.
12. Review the Fund's annual report for the ending fiscal year, in preparation for submission to the Prime Minister.
13. Approve the annual budget, income and expenditure account, and any statement related to the Fund's financial position.
14. Form standing and ad hoc committees from among its members or others, and assign certain tasks thereto.
15. Seek the assistance of experts and consultants to perform certain tasks or conduct studies and research.

The Board may delegate certain powers to the Secretary General or to any person it deems fit.



Article 7

1. The Board shall convene upon a call by its Chairman at least once every three months, and when necessary or if requested by at least three of its members. Board meetings shall be chaired by the Chairman, or his designee, and shall only be deemed valid if attended by the majority of Board members, including the Chairman or his designee.
2. Board decisions shall be passed by the majority vote of attending members. In case of a tie, the chairman of the meeting shall have the casting vote. In urgent cases, Board decisions may be passed by circulation, unless a Board member requests, in writing, that a meeting be held for deliberation. Board decisions passed by circulation shall be presented to the Board at its first subsequent meeting.

Article 8

1. The Secretary General shall be in charge of overseeing implementation of Board decisions as well as the Fund's work progress, managing the affairs of the Fund's employees, and maintaining the Fund's deeds, records, and entries, as well as representing the Fund before third parties.
2. The Secretary General shall attend Board meetings in a non-voting capacity, present items on the agenda, and supervise the drafting of necessary decisions.

Article 9

The Fund's resources shall consist of the following:

1. Funds granted by the State.
2. Donations, gifts, bequests, and endowments accepted by the Board.
3. Returns on its investments.

Article 10

All the funds of the Fund shall be deposited in a designated account with the Saudi Arabian Monetary Authority. Disbursement from such account may only be made pursuant to the signature of the Chairman, or his designee, pursuant to a Board decision.

Article 11

The Board shall set the necessary controls for disbursement from the annual revenues of the Fund's endowments and investments, provided that the following is taken into account:

1. Disbursement is made from the proceeds of each endowment as required for its preservation, including renovation, repair, and maintenance.
2. A minimum of 75% of the annual proceeds is allocated to assist the family members and legal dependants of martyrs, wounded persons, POWs, and MIAs who are in need. Any surplus is to be spent on charitable and philanthropic activities in the Kingdom in accordance with applicable laws and instructions.
3. A maximum of 25% of the annual proceeds is allocated to additional investments to develop the Fund and its financial capabilities.



Article 12

The Board may authorize the Secretary General to withdraw specific amounts to be disbursed on matters determined by the Board in accordance with the provisions of this Statute.

Article 13

The entity with which the martyr, wounded person, POW, or MIA is affiliated shall provide the Ministry of Interior with complete information on such person and his family to decide on the appropriate action to be taken with respect thereto, in accordance with this Statute.

Article 14

The Fund's fiscal year shall be the same as the State's fiscal year. As an exception, the Fund's first fiscal year shall commence with the beginning of the Fund's operations and end with the end of the following fiscal year.

Article 15

This Statute shall be published in the Official Gazette and shall enter into force on the date of its publication. It shall supersede any provisions conflicting therewith.



Appendix

Amendments

December 12, 2016 (Rabi' I 13, 1438H)

Council of Ministers Resolution No. 180 provides for the following:

- Amending Article 5 and Article 13 to read as follows:

"Article 5

The Fund shall have a board of trustees chaired by the Minister and comprising, as members, the Minister of Defense or his designee, Minister of the National Guard or his designee, Minister of Islamic Affairs, Dawah, and Guidance, Minister of Finance, and Minister of Labor and Social Development. The Chairman shall appoint, pursuant to a decision issued thereby, at least four additional members known for their contribution to charity work".

"Article 13

The entity with which the martyr, wounded person, POW, or MIA is affiliated shall provide the Fund's secretariat with complete information on such person and his family to take appropriate action with respect thereto, in accordance with this Statute".

January 23, 2018 (Jumada I 6, 1439H)

Council of Ministers Resolution No. 226 provides for the following:

- Amending the definition of "Minister" mentioned in Article 1 to read as follows:

"**Minister:** Minister of Defense".

- Amending Article 5 to read as follows:

"The Fund shall have a board of trustees chaired by the Minister and comprising, as members, the Minister of Interior, Minister of the National Guard, Minister of Islamic Affairs, Dawah, and Guidance, Minister of Finance, and Minister of Labor and Social Development. The Chairman shall appoint, pursuant to a decision issued thereby, at least four additional members known for their contribution to charity work".

August 27, 2019 (Thul-Hijjah 26, 1440H)

Council of Ministers Resolution No. 707 provides for the following:

- Deleting the definition of "Minister" mentioned in Article 1.
- Replacing the word "Minister" mentioned in Article 2 and Article 5 with the phrase "His Highness the Deputy Prime Minister".

October 11, 2022 (Rabi' I 15, 1444H)

Council of Ministers Resolution No. 195 provides for the following:

- Amending Article 5 by replacing the sentence "The Fund shall have a board of trustees chaired by His Highness the Deputy Prime Minister" with the sentence "The Fund shall have a board of trustees whose chairman shall be appointed pursuant to a resolution by the Council of Ministers".



December 3, 2024 (Safar 2, 1446H)

Council of Ministers Resolution No. 119 provides for the following:

- Amending Article 5 by adding the Minister of Defense and the President of the Presidency of State Security to the membership of the Fund's Board of Trustees so the Article reads as follows:

"The Fund shall have a board of trustees whose chairman shall be appointed pursuant to a resolution by the Council of Ministers. The Board shall comprise, as members, the Minister of Interior, Minister of the National Guard, Minister of Defense, Minister of Islamic Affairs, Dawah, and Guidance, Minister of Finance, Minister of Human Resources and Social Development, and the President of the Presidency of State Security. The Chairman shall appoint, pursuant to a decision issued thereby, at least four additional members known for their contribution to charity work".

April 14, 2026 (Shawwal 26, 1447H)

Council of Ministers Resolution No. 749 provides the following:

- Adding a paragraph to be numbered (16) to Article 6 to read as follows:
"Approve the Fund's organizational structure and manual".